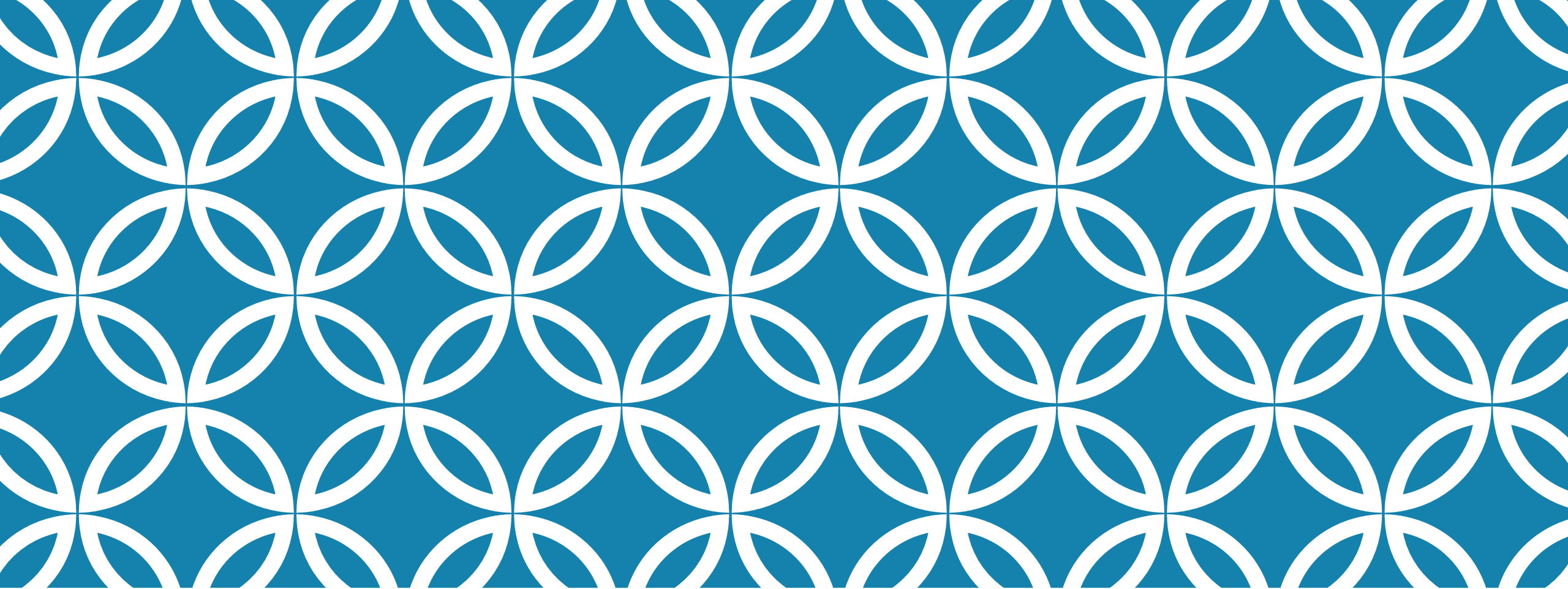
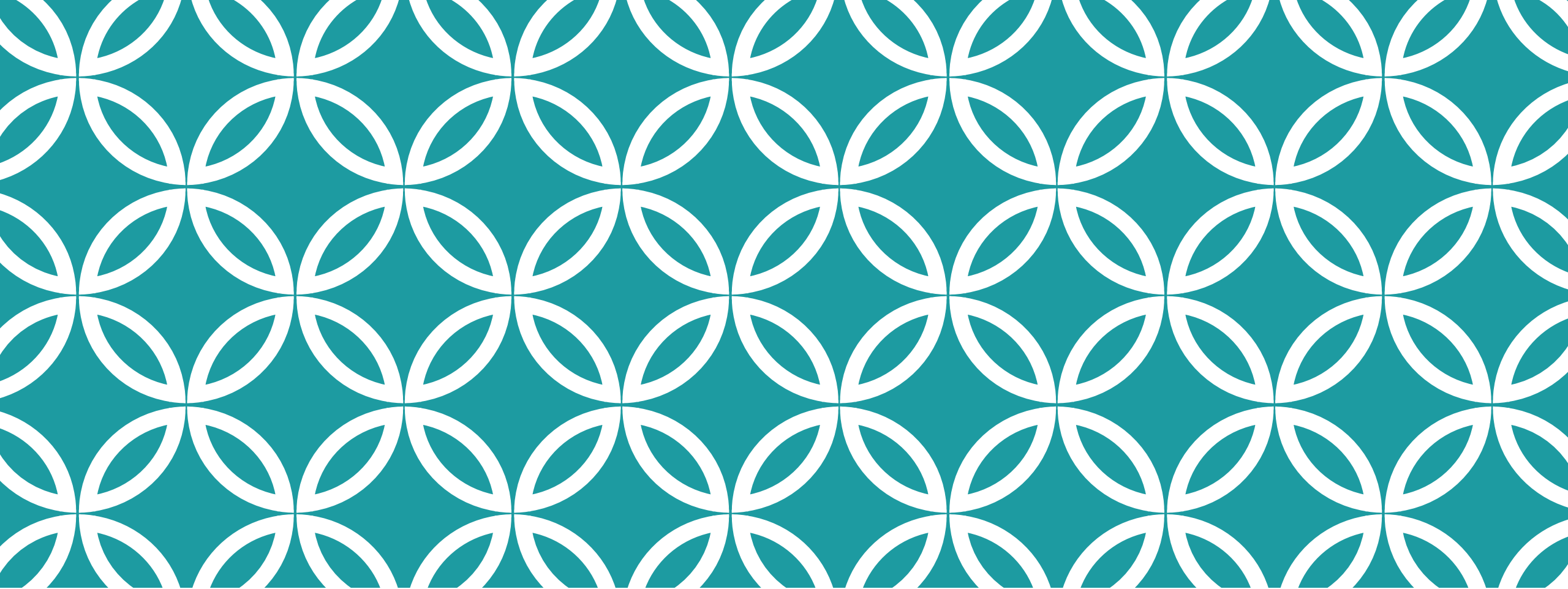




PUBP309: EDUCATION POLICY

School System in Post colonial India

Shivakumar Jolad
FLAME University



PRIVATE SCHOOLS IN INDIA

s

TYPES OF PRIVATE SCHOOLS

Ownership (aided and unaided)

Management (minority and non-minority)

Level (primary, upper primary, secondary)

Affiliation (State board, CBSE, ICSE, IB).

New Category: '**budget private school**'/'affordable private school' or 'low-fee/low-cost private school'.

- Broadly, this category refers to private schools which cater to low-income households.

Regulations of Private Schools in India, Shruti Ambast, Akriti Gaur, Ajey Sangai; Vidhi Centre for Legal Policy , 2017

Table 1: Private unaided schools and students

S. No.	State	Proportion of private unaided schools in the State	Proportion of children enrolled in private unaided schools
1.	Rajasthan	32.34%	49.23%
2.	Uttar Pradesh	31.55%	51.37%
3.	Haryana	29.63%	51.67%
4.	Andhra Pradesh	23.68%	42.76%
5.	Karnataka	23.42%	36.25%
	All India	19.38%	31.37%

Regulations of Private Schools in India, Shruti Ambast, Akriti Gaur, Ajey Sangai; Vidhi Centre for Legal Policy , 2017

IZA DP No. 10612

The Private Schooling Phenomenon in India: A Review

Geeta Gandhi Kingdon

IoE, University College London and IZA



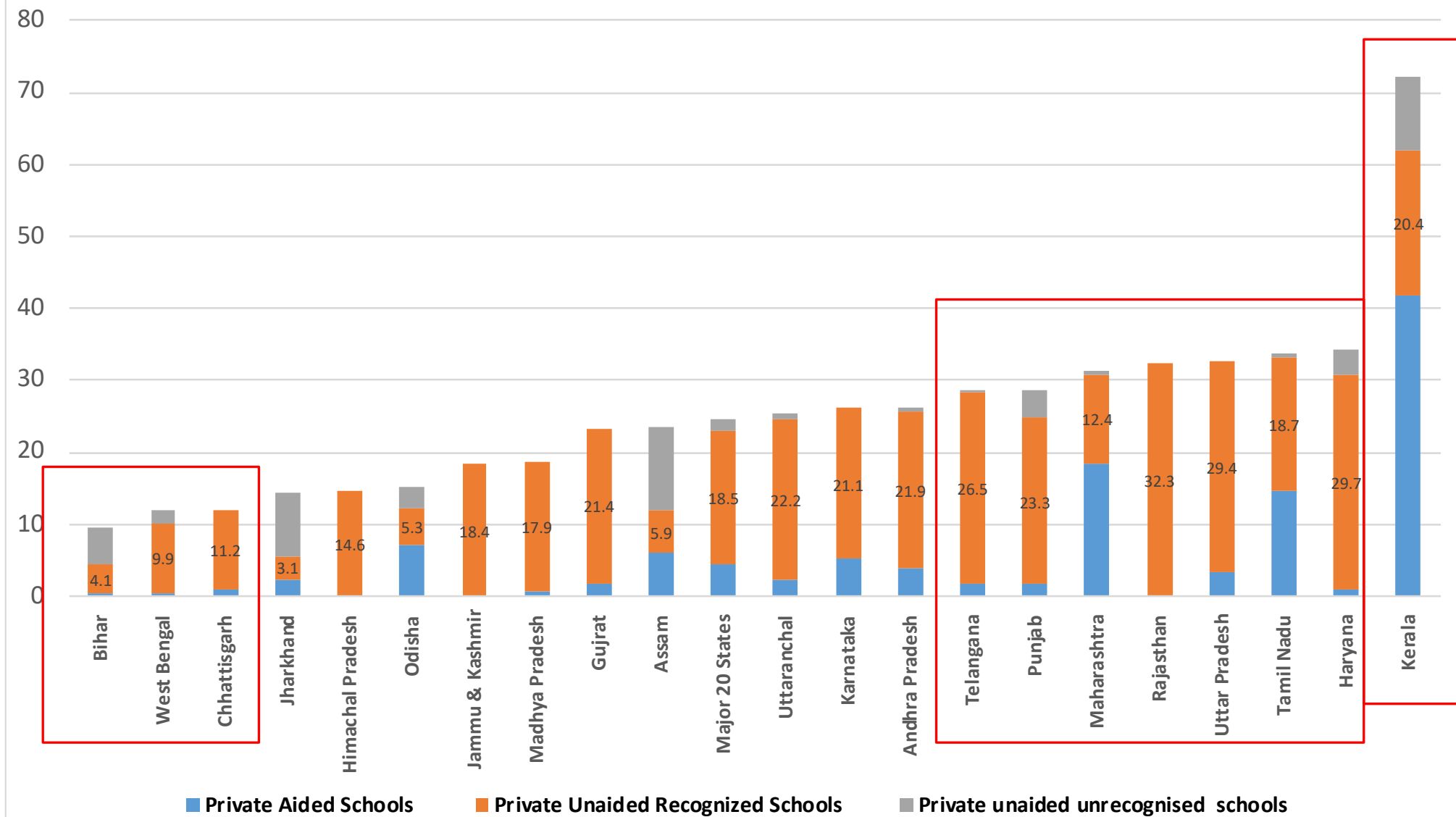
SUMMARY

- **Steep growth of private schooling and a corresponding rapid shrinkage in the size of the government school sector in India**, suggesting parental abandonment of government schools.
- **Very large majority of private schools in most states are 'low-fee' when judged in relation to: state per capita income,...**
 - **Affordability is an important factor behind the migration towards and growth of private schools.**
- The main reason for the **very low fee levels in private schools is their lower teacher salaries,**
- Private schools' **substantially lower per-student-cost combined with their students' modestly higher learning achievement levels**
- How education policies relating to private schools are harmful when formulated without seeking the evidence

This paper examines the size, growth, salaries, per-pupil-costs, pupil achievement levels and cost-effectiveness of private schools, and compares these with the government school sector. Official data show a steep growth of private schooling and a corresponding rapid shrinkage in the size of the government school sector in India, suggesting parental abandonment of government schools. Data show that a very large majority of private schools in most states are 'low-fee' when judged in relation to: state per capita income, per-pupil expenditure in the government schools, and the officially-stipulated rural minimum wage rate for daily-wage-labour. This suggests that affordability is an important factor behind the migration towards and growth of private schools. The main reason for the very low fee levels in private schools is their lower teacher salaries, which the data show to be a small fraction of the salaries paid in government schools; this is possible because private schools pay the market-clearing wage, which is depressed by a large supply of unemployed graduates in the country, whereas government schools pay bureaucratically determined minimum-wages. Private schools' substantially lower per-student-cost combined with their students' modestly higher learning achievement levels, means that they are significantly more cost-effective than government schools. The paper shows how education policies relating to private schools are harmful when formulated without seeking the evidence.

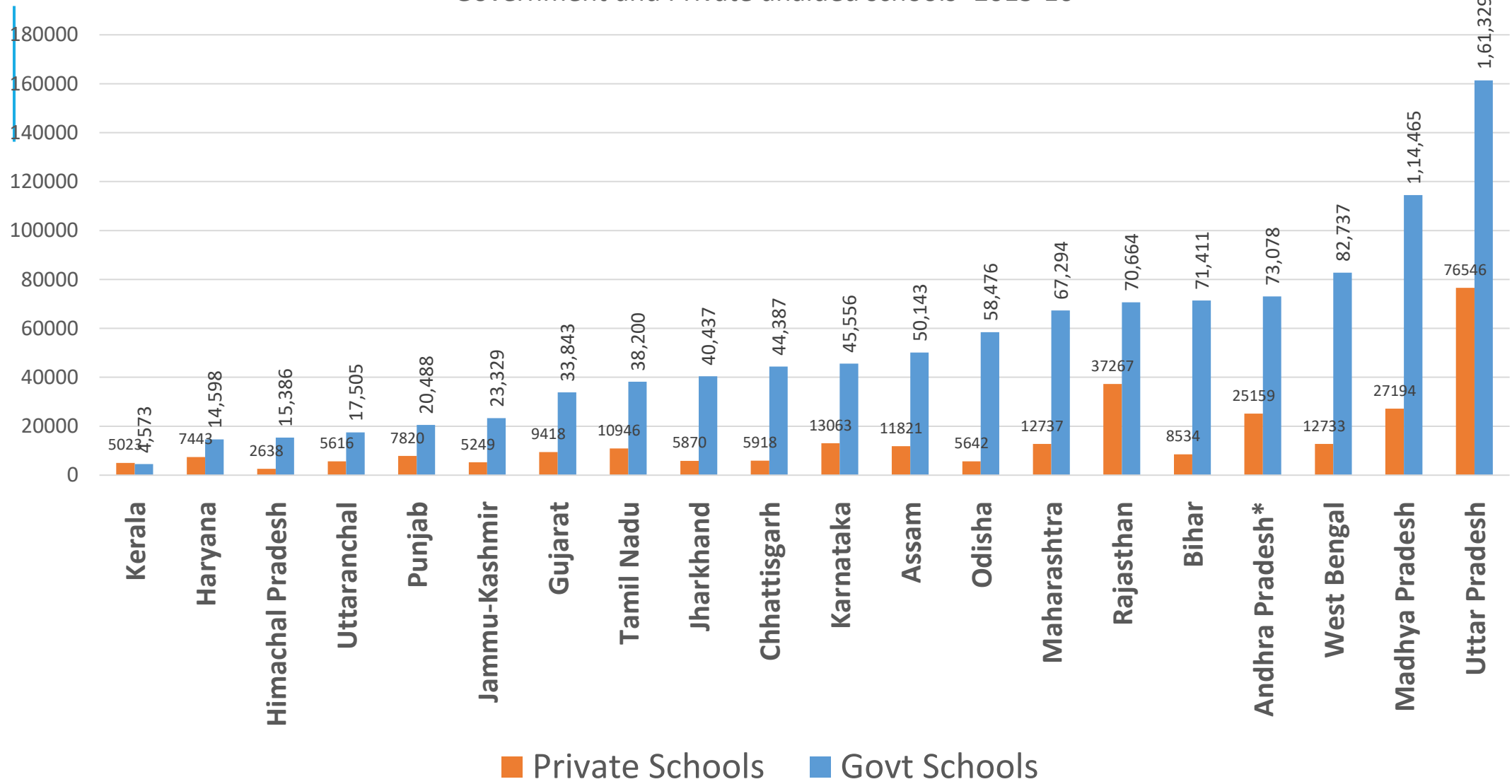
AIDED, UNAIDED AND UNRECOGNIZED SCHOOLS

Private (aided, unaided, unrecognized) schools in Indian states



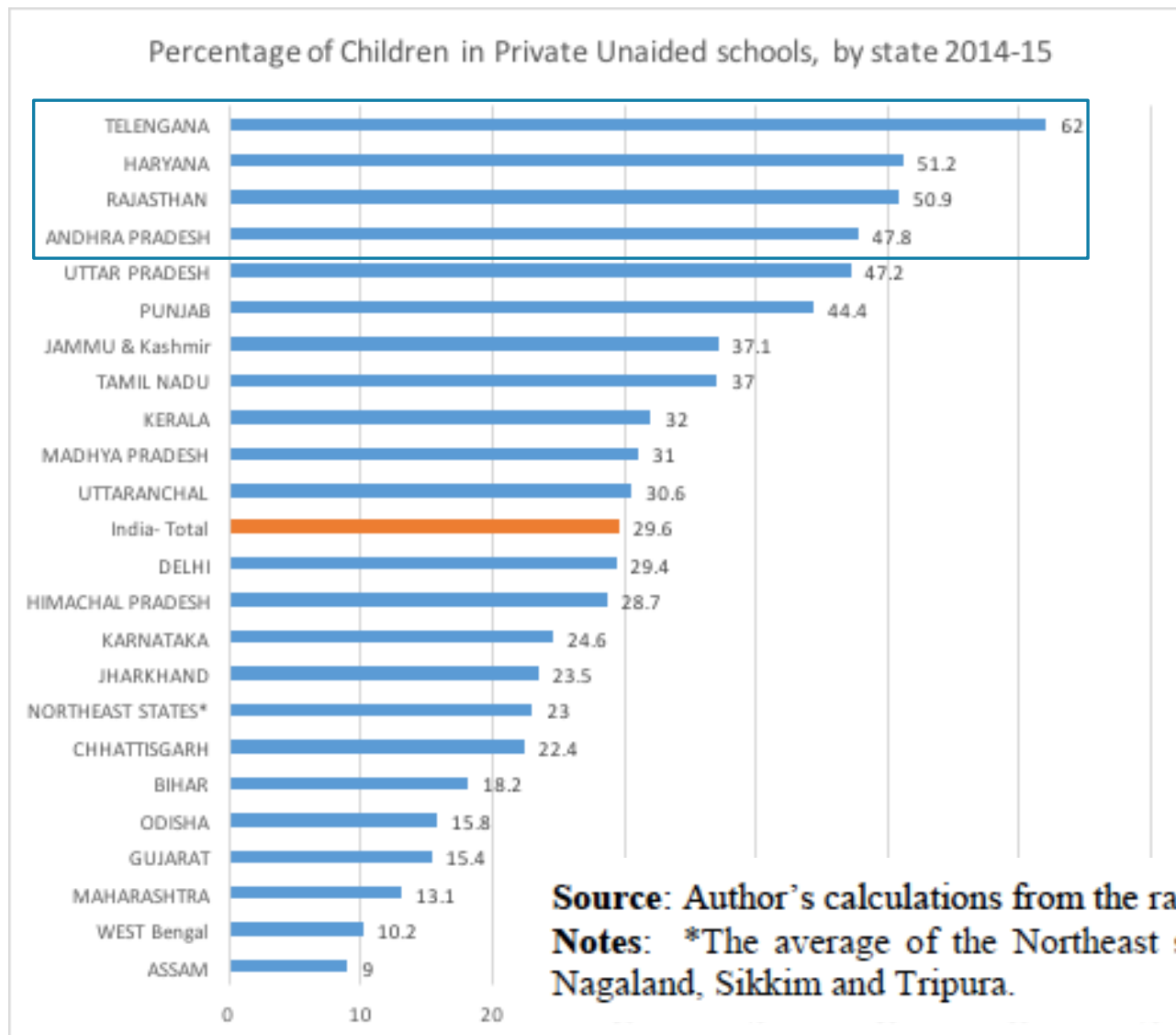
Source: **DISE data** ; Geeta Gandhi Kingdon : *The Private Schooling Phenomenon in India: A Review*, IZA DP No. 10612, March 2017

Government and Private unaided schools- 2015-16



DISE - estimates

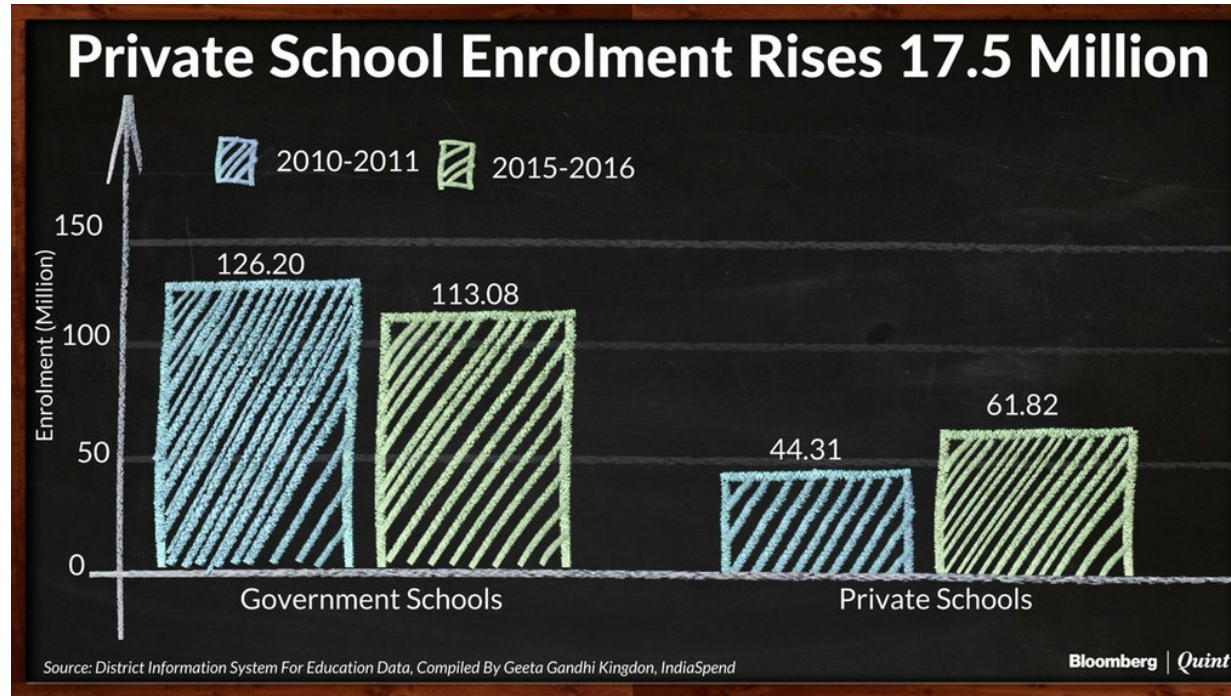
CHILDREN IN UNAIDED PRIVATE SCHOOLS



Based on NSS Survey

Many states have more than 50% of private unaided schools

GROWTH OF PRIVATE SCHOOLS

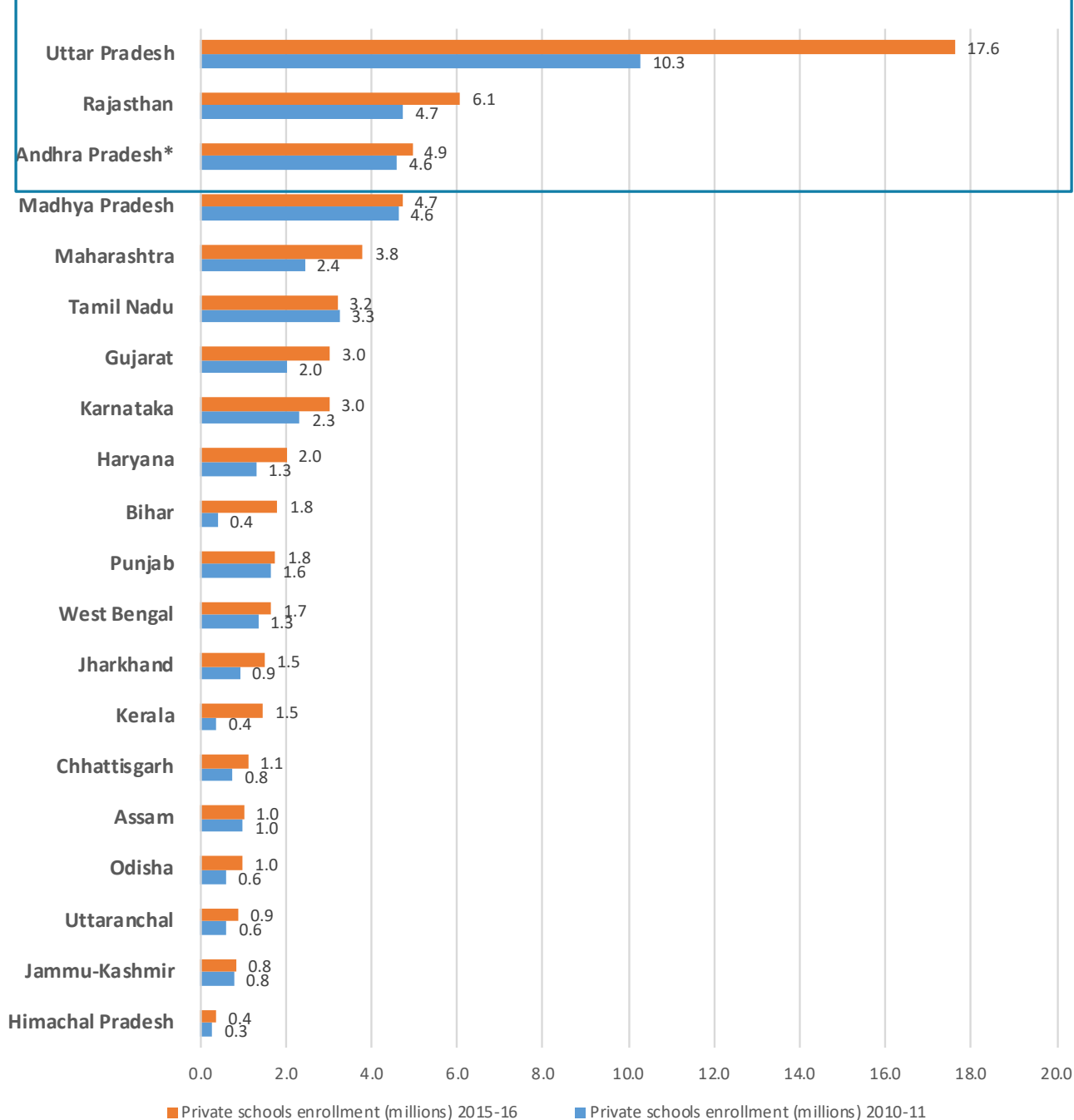


Devanik Saha (IndiaSpend), Bloomberg Quint, April 17, 2017

Government schools loose 13 million b/w 2010-11 and 2015-16

Source: DISE data ; Geeta Gandhi Kingdon : *The Private Schooling Phenomenon in India: A Review*, IZA DP No. 10612, March 2017

Private school enrollment 2010-2015 (in millions)



PRIVATE SCHOOL ENROLLMENT

2010-11 TO 2015-16

Government School Enrollment : 2010-11 to 2015-16 (millions)

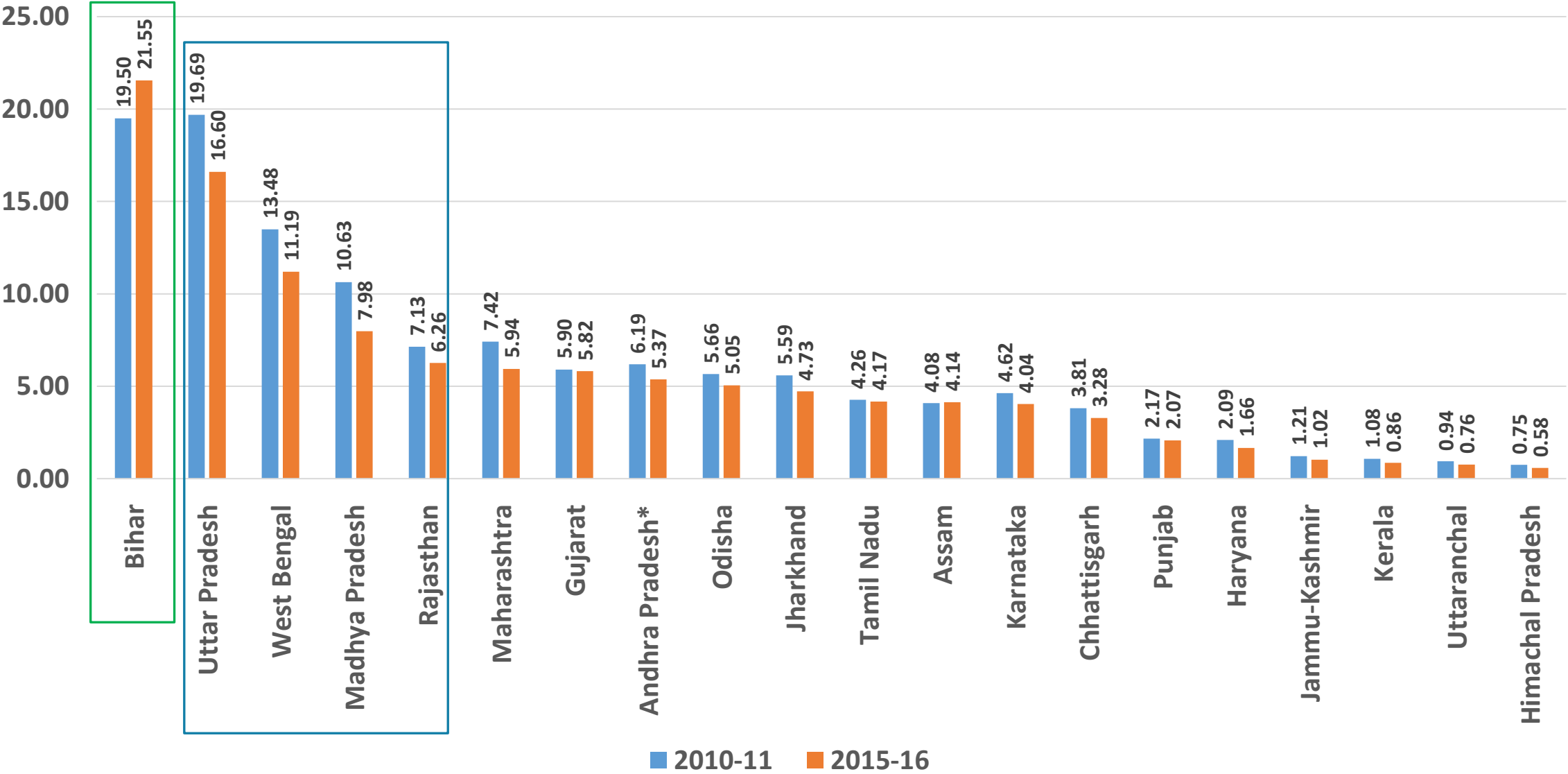
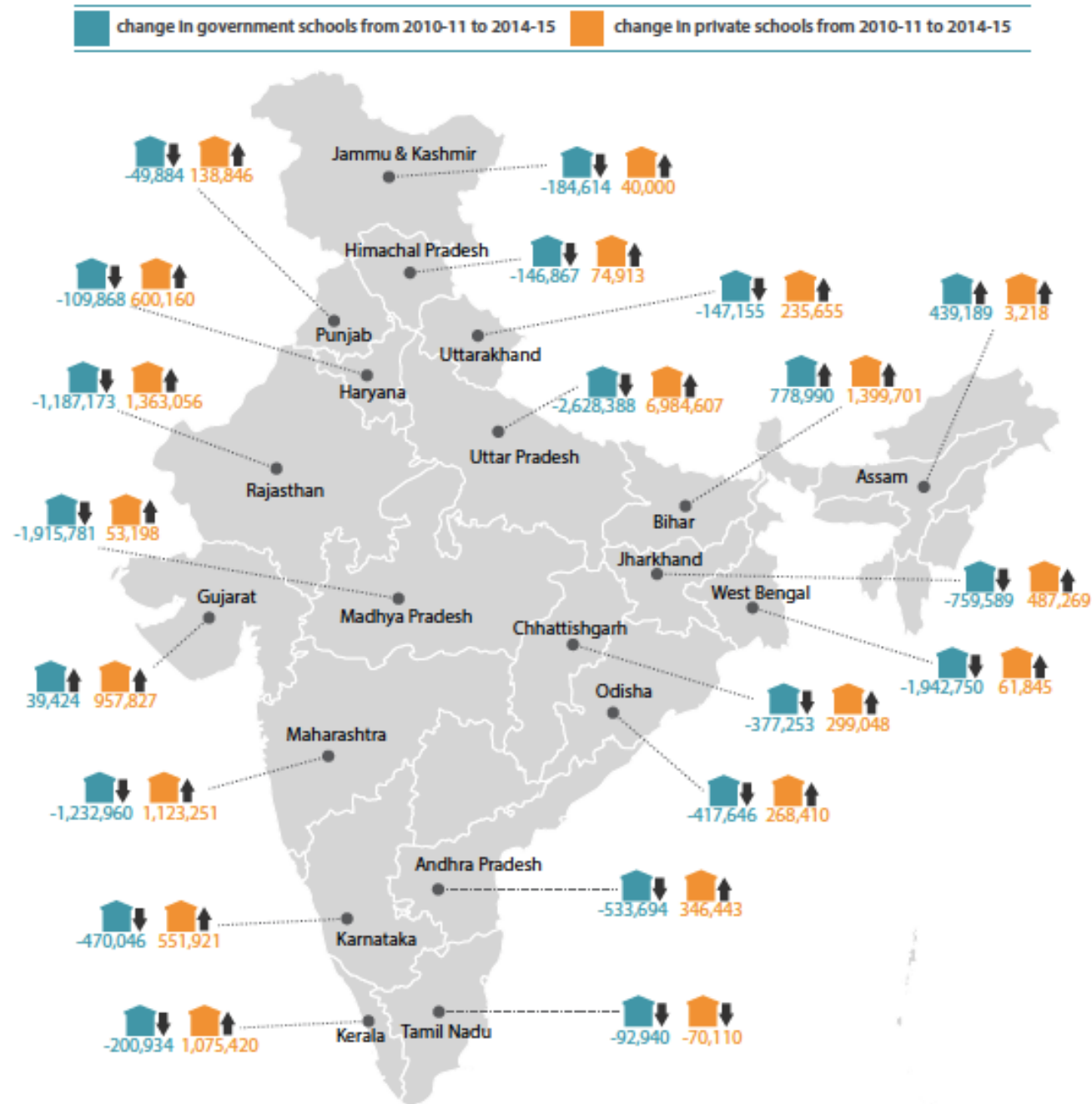


Table 3: Change in students in government and private schools, by state



The emptying of public schools and growth of private schools in India



Geeta Gandhi Kingdon

Geeta holds the Chair of 'Education Economics and International Development' at Institute of Education, University College London. Her research is based mostly on statistical analysis of education, based on which she advises governments and donor agencies such as the World Bank, EU and DFID on their education-related aid to developing countries.

REPORT ON BUDGET PRIVATE SCHOOLS IN INDIA

ENROLMENT CHANGE BY MANAGEMENT

INDIA - Enrollment decline in secondary schools by management

% Change in enrollment (2011-12 to 2023-24)

School Management	LEVEL	2011-12	2018-19	2021-22	2023-24	% change (2011-12 to 2023-24)	% change (2018-19 to 2023-24)
Government	Elementary	127.10	102.70	111.00	97.10	-23.58	-5.42
Government aided	Elementary	16.50	13.70	12.90	12.00	-27.56	-12.42
Private Unaided	Elementary	48.20	61.10	58.90	57.80	19.91	-5.49
Others	Elementary	7.30	7.00	5.80	4.00	-44.75	-42.70
ALL	Elementary	199.00	184.50	188.60	170.90	-14.15	-7.38
Government	Secondary (9-12)	NA	26.00	31.30	27.10		3.99
Government aided	Secondary (9-12)	NA	13.90	13.70	13.20		-4.80
Private Unaided	Secondary (9-12)	NA	23.00	24.60	23.10		0.67
Others	Secondary (9-12)	NA	1.00	0.40	0.50		-43.54
ALL	Secondary (9-12)	NA	63.80	70.10	64.00		0.17

NSS 2017-18

**Enrolled but not attending :
last class attended (drop out from which class)**

Age group 6-17	Enrolled but not attending		
Caste	Total	Rural	Urban
ST	21.34	22.55	10.9
SC	16.71	17.46	13.43
NonSCST	12.74	14.21	9.27
All caste	14.43	15.97	9.96

Class	ST	SC	NonSCST
1	0.61	0.95	0.29
2	2.67	1.95	1.85
3	3.3	2.74	2.79
4	5.78	2.65	3.36
5	19.11	16.06	15.59
6	5.52	5.14	4.65
7	6.01	5.21	5.61
8	24.86	27.29	23.7
9	12.64	9.42	9.06
10	15.1	19.46	20.7

ENROLMENT CHANGE BY SOCIAL GROUP

INDIA - Enrollment decline in schools

% Change in enrollment (2011-12 to 2023-24)

Class	Total	SC	ST	NonSCST
1	-36.73	-43.49	-41.57	-33.85
2	-23.45	-30.78	-28.84	-20.33
3	-18.23	-26.27	-24.55	-14.81
4	-15.88	-21.50	-22.19	-13.26
5	-9.96	-15.04	-11.76	-8.22
6	-6.13	-10.07	-6.01	-5.07
7	1.42	-0.98	4.64	1.61
8	11.87	8.19	21.41	11.61
ELEMENTARY	-14.08	-19.93	-17.74	-11.82

Table: Shivakumar Jolad • Source: [UDISE plus](#) • [Get the data](#) • Created with [Datawrapper](#)

INDIA - Enrollment decline in secondary schools

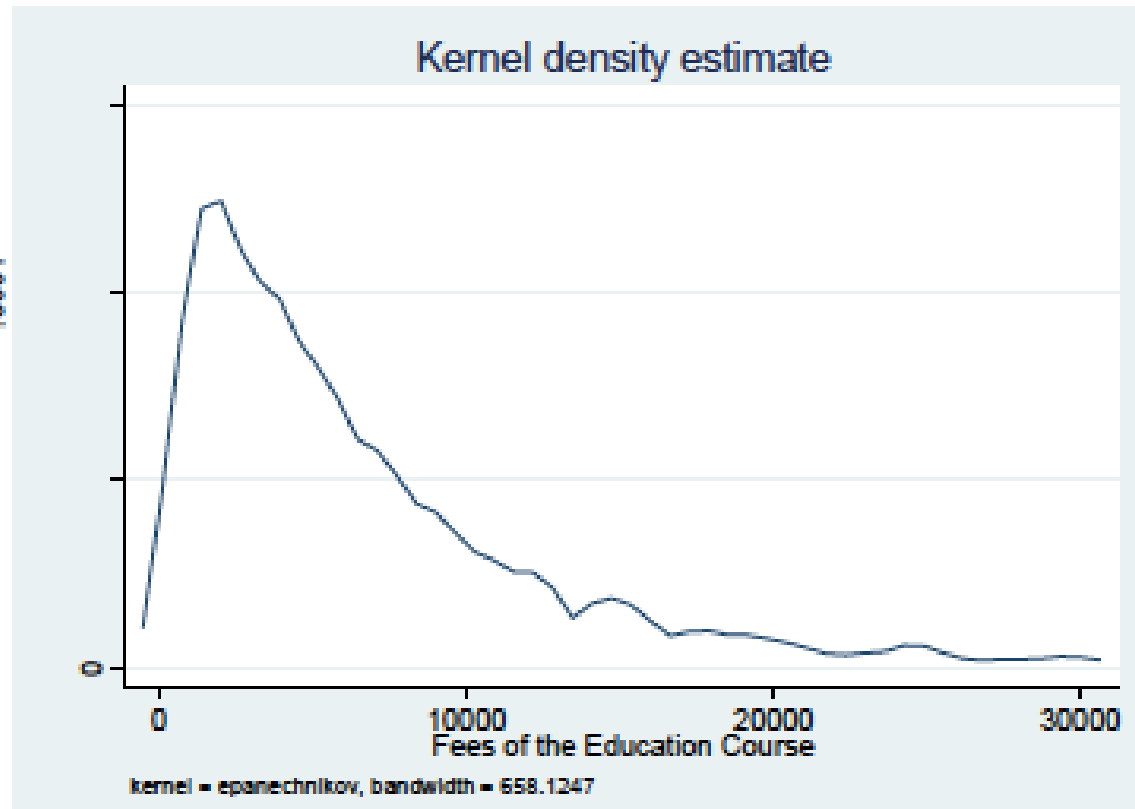
% Change in enrollment (2011-12 to 2023-24)

Class	Total	SC	ST	NonSCST
9	-9.67	-13.20	-7.63	-9.02
10	2.51	-0.06	5.15	2.85
11	4.31	3.95	6.41	4.19
12	7.11	9.24	15.26	5.84
SECONDARY	-0.03	-1.81	2.48	0.11

Table: Shivakumar Jolad • Source: [UDISE plus](#) • [Get the data](#) • Created with [Datawrapper](#)

Level	2011-12* (Total)	2018-19 (Total)	2021-22 (Total)	2023-24 (Total)
ELEMENTARY	19,893,0244	184,497,196	188,597,884	170,929,962
SECONDARY		63,886,480	67,527,354	63,864,265
ALL		248,383,676	256,125,238	234,794,227

FEE LEVELS IN PRIVATE SCHOOLS



Graph 1b

Distribution of (annual) fee level after constraining the fee values to be below Rs. 30,000 pa (Rs. 2500 pm). Even here, it is visible that only a very small number of students pay fees above around Rs. 12,000 pa or Rs. 1000 pm.



Median Fee Levels

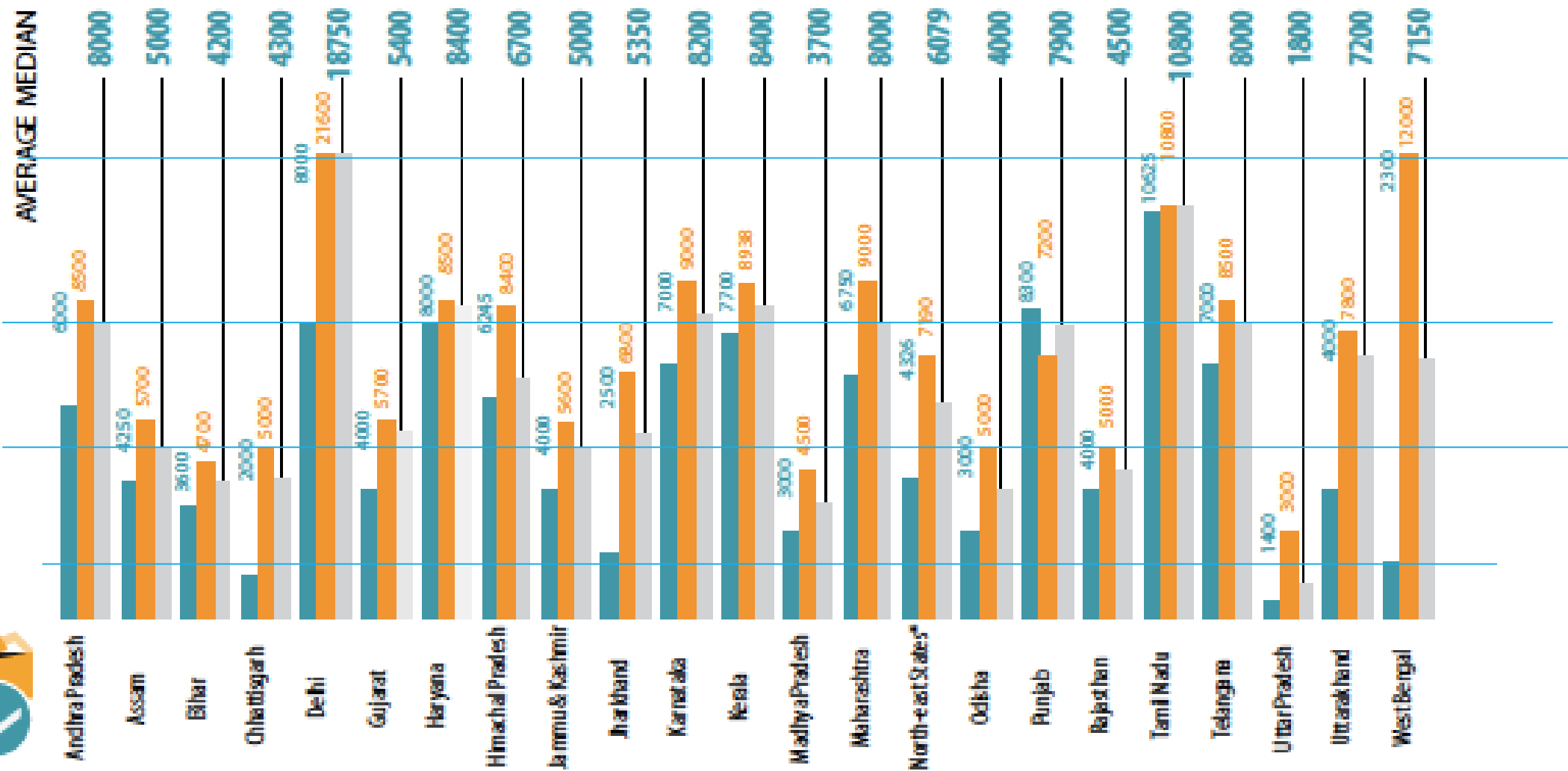


Table 6: Mean and median annual fee levels in private unaided schools for children aged 6-14, by state, 2014-15

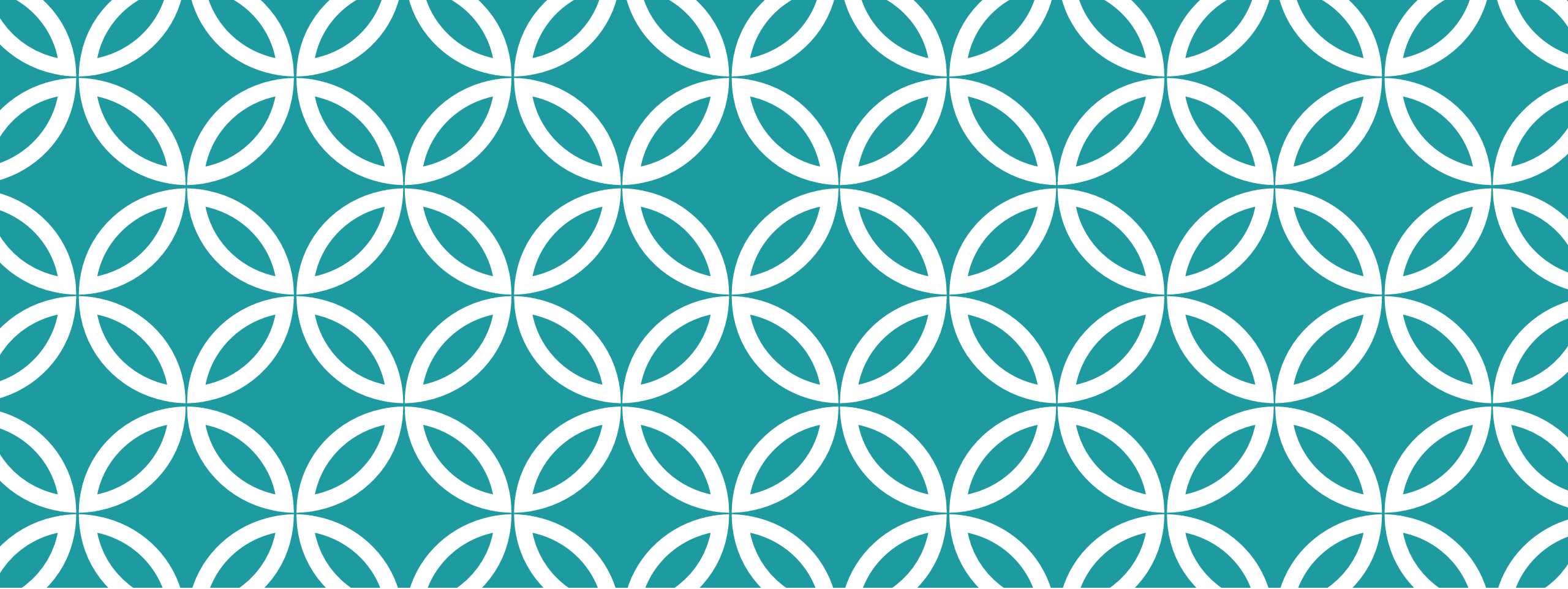
Annual Fee

State	Mean			Median		
	Rural	Urban	Total	Rural	Urban	total
Andhra Pradesh	7141	10300	9398	6000	8500	8000
Assam	5513	9049	7470	4250	5700	5000
Bihar	6464	6722	6633	3600	4700	4200
Chhattisgarh	2171	8851	7667	2000	5000	4300
Delhi	9595	25180	24198	8000	21600	18750
Gujarat	7230	8512	8260	4000	5700	5400
Haryana	9431	13413	12119	8000	8500	8400
Himachal Pradesh	8512	9598	8859	6245	8400	6700
Jammu & Kashmir	4901	7483	6269	4000	5600	5000
Jharkhand	5681	8054	7406	2500	6800	5350
Karnataka	7940	12130	11112	7000	9000	8200
Kerala	8829	10759	9990	7700	8938	8400
Madhya Pradesh	4259	6574	5823	3000	4500	3700
Maharashtra	9300	13594	12630	6750	9000	8000
Northeast States*	6157	8574	7395	4326	7190	6079
Orissa	3592	7585	6032	3000	5000	4000
Punjab	9893	11030	10589	8300	7200	7900
Rajasthan	4961	7583	6416	4000	5000	4500
Tamil Nadu	12072	12261	12197	10625	10800	10800
Telengana	8176	10827	10054	7000	8500	8000
Uttar Pradesh	2264	6303	4104	1400	3000	1800
Uttarakhand	8446	9501	9219	4000	7800	7200
West Bengal	4571	16613	13482	2300	12000	7150
Total (weighted mean)	5396	9611	7959	3500	6500	5000

Table 12
Actual take home salaries of govt. school regular teachers, by state
(Rupees per month)

State	Primary			Secondary		
	Salary of new appointee	Salary after 15 years	Salary after 25 years	Salary of new appointee	Salary after 15 years	Salary after 25 years
Tamil Nadu	15,345	28,660	50,140	26,370	48,750	84,410
Karnataka (R)	18,794	26,098	33,672	24,272	34,618	44,762
Karnataka (U)	21,814	30,198	38,892	28,102	39,978	51,622
Jharkhand (R)	28,650	39,780	44,400	37,494	57,523	78,637
Jharkhand (U)	31,600	43,260	48,100	39,208	60,160	82,247
Odisha	14,031	26,659	27,347	25,625	37,806	43,034
Rajasthan	26,013	--	--	28,331	--	--
Mizoram	16,504	--	--	--	--	--
Uttar Pradesh	29,293	39,683	44,783	37,226	47,716	52,996
Punjab (R)	35,936	59,113	79,288	40,602	66,868	89,699
Punjab (U)	36,588	60,194	80,742	41,340	68,092	91,346
Simple Average	25,922	40,623	49,653	33,578	51,595	66,793

Source: Ramachandran (2015) at the National University of Educational Planning and Administration (NUEPA).
Note: R – Rural; U – Urban. Actual take home salary includes basic pay, grade pay, dearness allowance, House Rent Allowance (HRA), City Compensatory Allowance (CCA), and other benefits and deductions (if any).



TYPES OF PRIVATE SCHOOLS

Ownership (aided and **unaided**)

Management (minority and **non-minority**)

Level (primary, upper primary, secondary)

Affiliation (State board, CBSE, ICSE, IB).

New Category: '**budget private school**'/'affordable private school' or 'low-fee/low-cost private school'.

- Broadly, this category refers to private schools which cater to low-income households.

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CAN GOVERNMENT REGULATE PRIVATE SCHOOL?

Constitution: Education-> Concurrent subject

- Governed by state and central laws

The Right to Education Act, 2009,

- norms and standards for private schools, including **infrastructure norms, minimum teacher qualifications, pupil-teacher ratios and curricular standards.**
- **25% reservation for EWS in grade I**

Combination of the RTE Act and State laws, such as recognition, hiring of staff and curriculum.

State laws-> fees and inspection

RTE-2009- RECOGNITION OF SCHOOLS

18. No School to be established without obtaining certificate of recognition: (1) No school, other than a school established, owned or controlled by the appropriate Government or the local authority, shall, after the commencement of this Act, be established or function, without obtaining a certificate of recognition from such authority, by making an application in such form and manner, as may be prescribed.

(2) The authority prescribed under sub-section (1) shall issue the certificate of recognition in such form, within such period, in such manner, and subject to such conditions, as may be prescribed:

Provided that no such recognition shall be granted to a school unless it fulfils norms and standards specified under section 19.

(3) On the contravention of the conditions of recognition, the prescribed authority shall, by an order in writing, withdraw recognition:

RTE-2009- NORMS AND STANDARDS FOR SCHOOLS

19. Norms and standards for school: (1) No school shall be established, or recognised, under section 18, unless it fulfils the norms and standards specified in the Schedule.

(2) Where a school established before the commencement of this Act does not fulfil the norms and standards specified in the Schedule, it shall take steps to fulfil such norms and standards at its own expenses, within a period of three years from the date of such commencement.

(3) Where a school fails to fulfil the norms and standards within the period specified under sub-section (2), the authority prescribed under sub-section (1) of section 18 shall withdraw recognition granted to such school in the manner specified under sub-section (3) thereof.

(4) With effect from the date of withdrawal of recognition under sub-section (3), no school shall continue to function.

(5) Any person who continues to run a school after the recognition is withdrawn, shall be liable to fine which may extend to one lakh rupees and in case of continuing contraventions, to a fine of ten thousand rupees for each day during which such contravention continues.

RTE Norms and Standards for a School⁴⁶

For Teachers

1. **Primary School:** Availability of two teachers up to sixty children admitted in a school. The number of teachers will increase in proportion with the increase in the number of children admitted in a school. The proportionate increase of teachers is given in the Schedule (Refer footnote 43).
2. **Upper Primary School:** (1) At least one teacher per class so that there shall be at least one teacher each for (i) Science and Mathematics; (ii) Social Studies; and (iii) Languages, (2) At least one teacher for every thirty five children.

School Building: The school should have an all-weather building consisting of -

- At least one classroom for every teacher and an office-cum-store-cum-head teacher's room;
- Barrier-free access;
- Separate toilets for boys and girls;
- Safe and adequate drinking water facility for all children;
- A kitchen where the midday meal is cooked in the school;
- Playground.

LEGAL BASIS FOR REGULATING PRIVATE SCHOOLS

International commitments;

Constitutional obligations;

Judicial decisions on unaided private schools. '

- # INTERNATIONAL OBLIGATIONS
- India has ratified the International Covenant on Economic, Social and Cultural Rights ('ICESCR')
- Enjoins state parties to recognise the fundamental right to education of all people
 - **Recognises the right of parents to send their children to schools, other than those run by the state**
 - Affirms the liberty of individuals and bodies of individuals to run their own educational institutions
 - state has an obligation to ensure that *this liberty 'does not lead to extreme disparities of educational opportunity for some groups in society'*.
 - **The state must ensure *availability* by not closing private schools.** Similarly, it may impose obligations on private schools to facilitate equitable access or impose measures to hold these schools accountable to education of acceptable standards.

The 4 A's : availability, accessibility, acceptability and adaptability

Convention on the Rights of the Child (CRC)	1992	The state should progressively realise right to education for all children based on equal opportunity. The school discipline should be 'administered in a manner consistent with the child's human dignity' and in consonance with the convention. (Article 28)
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CONSTITUTIONAL OBLIGATIONS

Article 21A : The State shall provide free and compulsory education to all children of the age of six to fourteen years *in such manner as the State may, by law, determine.*

Article 19 in The Constitution Of India 1949: Protection of certain rights regarding freedom of speech etc. All citizens shall have the right

- (a) to freedom of speech and expression;
- .. **(g) to practise any profession, or to carry on any occupation, trade or business**
- (6) Nothing in sub clause (g) of the said clause shall affect the operation of any existing law in so far as it imposes, or prevent the State from making any law imposing, in the interests of the general public, reasonable restrictions on the exercise of the right conferred by the said sub clause

Taking this approach, **private schools may be subject to regulations in the interest of protecting and fulfilling the fundamental right to education.**

DIRECTIVE PRINCIPLES- REGULATION

The government must ensure that children are provided opportunities to develop in a **healthy manner in conditions of freedom and dignity, and are protected against exploitation.**

Government is required to take effective steps for promoting **educational interests of disadvantaged sections, particularly Scheduled Castes and Scheduled Tribes.**

Private schools, like any other schools, can be regulated to promote the above-mentioned constitutional objectives.

- Regulations directed at ensuring provision of **adequate infrastructure, facilities for the health and safety of children, equality of access, particularly to promote educational interests of disadvantaged groups**, and ensuring that teaching and non-teaching staff is treated in a humane and non-exploitative manner, would all be valid restraints on the autonomy afforded to private schools.

JUDICIAL JUDGEMENTS

J.P. Unnikrishnan v. State of Andhra Pradesh, AIR 1993 SC 2178

- Supreme Court had interpreted the right to education as part of the fundamental right to life under Article 21.31
- The Court, while outlining the role of private schools in realising the right to education, has traditionally **considered education to be a public good and a charitable activity.**

Supreme and high court rulings: Censured ‘commercialisation of education’, **banned the charging of capitation** and emphasized on the state’s duty to invest in improving educational facilities.

T. M. A. Pai Foundation & Ors vs State Of Karnataka:

- Scope of right of minorities to establish and administer educational institutions of their choice under Article 30(1) read with Article 29(2) of the Constitution
- **while private schools had the broad autonomy to fix their admission policy and fee structure, profiteering was disallowed and private schools** could only make a ‘reasonable surplus

ANALYTICAL FRAMEWORK FOR ASSESSING PRIVATE SCHOOL REGULATIONS

Policy goals identified for India	Indicator Heads
Ease of opening schools	- Who can open a school - Land ownership and land size norms - Building and infrastructure norms - Associated costs
Operational autonomy	- Selection and salary of employees - Curriculum - Admission procedures - Fees charged
Accountability and Transparency	- Minimum learning standards - Inspections - Grievance redress - Disclosure requirements
Empowering parents and communities	- Information sharing - Parent-teacher associations

Based on World Bank
SABER- EPS Framework

STATE REGULATIONS

Establishment and recognition

- **individuals/groups of individuals to establish schools, financial viability, ownership of land, minimum area of land required for setting up a school, and no-objection certification regarding land use,** supplemented by appropriate documents furnishing evidence of ownership/lease.

Operations and day-to-day administration

- **The law prescribes the desired qualifications and procedure for appointment of teaching and non-teaching staff and conditions of service.** It also contains provisions regulating the role and functions of the head of the school/managing committee, maintenance of financial records, audits and inspections of school accounts, physical inspections by government representatives, mode of maintenance of accounts and procedure for auditing accounts,

Withdrawal of recognition and closure of the school

- These laws govern the conditions inviting closure of private schools, withdrawal of recognition, and procedure for taking over the management

EASE OF OPENING SCHOOLS

Who can open a school? : In India, private persons desirous of opening a school are required to first register themselves as a **society or a trust**.

Land, building and other recognition norms : A society or a trust, as the case may be, is required to either own the school building or hold it on a long-term lease. The minimum term of lease is 10 years in Uttar Pradesh, and 20 years in Haryana.

- Several State governments have threatened to close down low-fee private schools due to their non-compliance with recognition norms

OPERATIONAL AUTONOMY

Staff Selection:

- The RTE Act provides for **minimum academic qualifications and an eligibility exam as essential conditions for appointing a teacher.**
- Haryana and Karnataka also regulate the minimum salary that private schools must pay their teachers, unlike other States in the survey.

Fee and admission-related regulations

- **Section 12(1)(c)** of the RTE Act and similar contractual obligations in lieu of allotment of land at concessional rates
- **The RTE Act prohibits schools from employing screening procedures of any kind in the selection of students**
- Schools have larger latitude with respect to deciding their fee-structure, although they are prohibited from charging capitation fee under the RTE Act
- **Schools are prohibited from raising their fee by more than 10% in the interval of three years**

	POLICY GOAL INDICATORS	ANSWER (YES/NO)	COMMENT	LEGAL PROVISION
1 - Ease of Opening Schools				
1.1	Is there no restriction on who can open a school?	No	Those who want to open a school must first be registered as a society or trust.	Procedure and requirements relating to establishment and recognition of schools have been laid down in the Karnataka Educational Institutions (Classification and Recognition) Rules, 1997 [hereafter '1997 Rules']
1.2	Is there no restriction on the ownership of land required to open a school?	No		
1.3	Are there different land norms for different types of schools?	No	Norms differ for different areas in which the proposed school is to be set up.	Evidence of ownership of land required for registration. Clause 10(d) of Form I as prescribed in the Karnataka Educational Institutions (Classification and Registration) Rules 1997 "photo copy of title deeds to evidence possession of the extent of land required for building, playground, etc., of the prescribed standards." Moreover, a circular was issued in 2014 by the Department of Education, Government of Karnataka which makes evidence of land ownership (or agreement of the lease period) mandatory for registration and recognitions. []

1.4	Are there no conditions for recognition which may be regarded as stringent/prohibitive? If no, please specify	No	For eg: - carpet area for each student of not less than six square feet	Conditions for recognition have been laid down in Rule 4 and 5 of the Karnataka Educational Institutions (Classification, Regulation and Prescription of Curricula Etc.,) Rules, 1995 [hereafter '1995 Rules']
	Minimum standards for land	Managements planning to open private schools should own a minimum of two acres of land in rural areas, one-and-half acres in town municipality and panchayat jurisdictions, and at least one acre in the corporation area.		Through an executive circular. Sourced from http://www.thehindu.com/news/national/karnataka/government-sets-guidelines-for-opening-private-schools/article6633795.ece) Circular not available.
	Minimum standards for school building	Not quantified but specified in terms of factors to be kept in mind for constructing a building.		Provided in Rule 4 and 5 of the 1995 Rules
	Minimum standards for classrooms	Specific classroom size prescribed		As per a Government circular - Schools must mandatorily have at least 5 classrooms for primary sections, 8 for higher primary and 9 for high schools - all measuring 18ftx20ft [http://www.thehindu.com/news/national/karnataka/government-sets-guidelines-for-opening-private-schools/article6633795.ece)]
	Quantum of fee	Endowment fund, registration fee for different categories of schools provided.		Endowment fund - Rs. 1 lakh is the minimum endowment amount for primary schools, Rs. 2 lakhs for Kannada-medium higher primary schools, Rs. 5 lakhs for English primary schools, Rs. 3 lakhs for higher primary schools and Rs. 10 lakhs for English-medium higher primary schools